

Court No. - 30

Case :- CONTEMPT APPLICATION (CIVIL) No. - 955 of 2016

Applicant :- Rajendra Singh Yadav

Opposite Party :- Sri S.K. Sharma, Exe. Engineer Power Dist. Division

Counsel for Applicant :- Om Prakash Katiyar, Adya Prasad Tewari

Hon'ble Mrs. Sunita Agarwal, J.

It is alleged that the order of Writ Court dated 14.12.2015 and order of Contempt Court dated 14.1.2016 has been violated by the opposite party with impunity.

The order of Contempt Court was brought to the knowledge of the opposite party with a letter dated 23.1.2016 which was sent through registered post. The opposite party has yet not decided the claim of the applicant.

Prima facie a case for wilful violation of the direction of the writ Court is made out.

Issue notice to opposite party.

By the next date fixed the opposite party shall comply with the order of writ Court and shall file an affidavit of compliance/counter affidavit failing which he shall appear in person before the Court or else charges for wilful disobedience of the order of writ Court shall be framed against him.

List this matter on 19.5.2016.

Order Date :- 23.2.2016

Mini

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Hon'ble Manoj Misra, J.

From the report submitted by the C.J.M., Farrukhabad in respect of service of notice on the opposite party, it appears that when the service was sought to be effected, the office of the opposite party was found locked and thereafter service was effected on some clerk. As admittedly, the office of the opposite party was found locked when the service was allegedly made, the service on a clerk does not appear to be a proper service.

In view of above, let fresh notice be issued to opposite party returnable by 5.7.2016.

List on 5.7.2016.

Order Date :- 19.5.2016

Arvind

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Hon'ble Pankaj Naqvi, J.

In view of office report dated 4.7.2016, notice has been served upon O.P. on 5.7.2016.

Case called out. No one responds on behalf of opposite party.

Let bailable warrant be issued against the opposite party, to be executed through the CJM concerned.

Office to proceed.

List on **26.7.2016**.

Order Date :- 5.7.2016

N.S.Rathour

Court No. - 30

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Counsel for Applicant :- Om Prakash Katiyar, Adya Prasad Tewari

Hon'ble Pankaj Naqvi, J.

Pursuant to the order dated 26.07.2016 the opposite party is present today, who has been identified by his counsel Sri Baleshwar Chaturvedi.

Learned counsel for the opposite party submits that compliance affidavit is ready but the same has not been served upon learned counsel for the applicant. He may do so within three days from today.

List on 03.08.2016.

On the next date too, the opposite party shall ensure his physical presence.

Order Date :- 26.7.2016

Imroz

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Counsel for Applicant :- Om Prakash Katiyar, Adya Prasad Tewari

Hon'ble Pankaj Naqvi, J.

Heard Sri Adya Prasad Tewari, learned counsel for the applicant and Sri Kamal Kesarwani, learned counsel holding brief of Sri Baleshwar Chaturvedi, for the opposite party.

This contempt is filed for punishing the opposite party for committing wilful/ deliberate disobedience of order dated 14.12.2015 in Writ-C no. 66159 of 2015 and that of order dated 14.1.2016 in Contempt Application (Civil) No.176 of 2016.

By order dated 14.12.2015, this Court had directed that in the event the applicant avails the remedy under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005, an appropriate decision shall be taken, expeditiously.

An affidavit of compliance has been filed on behalf of the opposite party stating therein that in compliance to the order of the Writ-Court, the representation preferred by the applicant has been disposed of by the opposite party under his signatures on 21.7.2016.

The Court has perused the order of the Writ-Court and that of the Contempt Court dated 21.7.2015 on his representation and finds that the order of the Writ-Court has been complied with in letter and spirit.

Nothing survives.

The contempt is **dismissed**. Notice discharged.

Opposite party is present, who is identified by Sri Kamal Kesarwani, learned counsel holding brief of Sri Baleshwar Chaturvedi.

Order Date :- 3.8.2016

N.S.Rathour